

STATE OF NEW YORK

9296--A

2025-2026 Regular Sessions

IN ASSEMBLY

December 10, 2025

Introduced by M. of A. COLTON -- read once and referred to the Committee on Transportation -- recommitted to the Committee on Transportation in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law, in relation to requiring catalytic converters to be indelibly marked or engraved with vehicle identification numbers; and to amend the general business law, in relation to requiring junk dealers to obtain certain information and documentation upon receipt of a catalytic converter

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The vehicle and traffic law is amended by adding a new
2 section 384 to read as follows:

3 § 384. Catalytic converters. 1. For the purposes of this section,
4 "catalytic converter" means an exhaust emission control device which
5 modifies exhaust gas from an internal combustion engine by catalyzing a
6 redox reaction.

7 2. No retail dealer shall sell a new or used motor vehicle or parts of
8 vehicles for which a certificate of title has been issued by the commis-
9 sioner or which would be eligible to have such a certificate of title
10 issued unless the vehicle catalytic converter has been indelibly marked
11 or engraved with the vehicle identification number of the vehicle.

12 3. A retail dealer found to have violated a provision of this section
13 shall be guilty of a violation and liable for a fine of not more than
14 one thousand dollars for each violation.

15 § 2. The general business law is amended by adding a new section 62-a
16 to read as follows:

17 § 62-a. Receipt of catalytic converters. 1. No junk dealer, junk yard
18 owner or operator, or scrap metal processor or scrap metal processing
19 facility as described in article six-C of this chapter may receive a

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD14083-03-6

1 catalytic converter of a motor vehicle that is not attached to such
2 motor vehicle unless such processor, dealer, owner, operator processor
3 or facility, at the time of receipt:

4 a. records the place and date of the transaction, a description of the
5 catalytic converter, including item type and identification number, if
6 any, and the amount paid for the catalytic converter;

7 b. records a description of the seller and the seller's name, resi-
8 dence address and motor vehicle operator's license or identity card
9 number or, if the seller is a business, the name, address and telephone
10 number of the business;

11 c. records the number plate of the motor vehicle used to transport the
12 catalytic converter to the licensee;

13 d. obtains from the seller a statement: (i) that the seller is the
14 owner of such catalytic converter; or (ii) identifying the name of the
15 person from whom the seller obtained the catalytic converter, as shown
16 on a signed transfer document; and

17 e. takes a clear photograph or video of the seller, the motor vehicle
18 operator's license or identity card of the seller and the catalytic
19 converter.

20 2. The commissioner of motor vehicles shall adopt regulations concern-
21 ing the creation and retention of documents and other records required
22 by subdivision one of this section. Such documents and records shall be
23 open for inspection by law enforcement officials upon request during
24 normal business hours.

25 3. A person found to have violated a provision of this section shall
26 be guilty of a violation and liable for a fine of not more than one
27 thousand dollars.

28 4. This section shall not apply to any of the following:

29 a. a collector of motor vehicles; or

30 b. a vehicle sold in any of the following circumstances:

31 (i) by an automobile dismantler after being reported for dismantling
32 pursuant to section four hundred fifteen-a of the vehicle and traffic
33 law;

34 (ii) by or through a salvage pool after obtaining a salvage certif-
35 icate pursuant to section four hundred fifteen-a of the vehicle and
36 traffic law, a certificate of title for a vehicle described in subdivi-
37 sion five of section four hundred fifteen-a of the vehicle and traffic
38 law, or in a similar ownership document issued by another state;

39 (iii) by or through a salvage disposal auction;

40 (iv) by or through a wholesale motor vehicle auction; or

41 (v) a motorcycle.

42 5. For purposes of this section:

43 a. "salvage disposal auction" means an auction where a person or enti-
44 ty, engaged primarily in the business of selling total loss salvage
45 vehicles on behalf of insurance companies and that has more than eight
46 business locations in New York, sells total loss salvage vehicles;

47 b. "wholesale motor vehicle auction" means an auction where the dealer
48 conducting the auction does not take ownership of the vehicle and the
49 vehicle is sold to a nonretail buyer for resale; and

50 c. "motorcycle" means every motor vehicle having a seat or saddle for
51 the use of the rider and designed to travel on not more than three
52 wheels in contact with the ground, but excluding a tractor.

53 § 3. This act shall take effect January 1, 2027. Effective immediate-
54 ly, the addition, amendment and/or repeal of any rule or regulation
55 necessary for the implementation of this act on its effective date are
56 authorized to be made and completed on or before such effective date.